

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC.; CONSOLIDATED CHASSIS
MANAGEMENT, LLC; CMA CGM S.A.; COSCO
SHIPPING LINES CO. LTD.; EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982;
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK
A/S; MSC MEDITERRANEAN SHIPPING
COMPANY S.A.; OCEAN NETWORK EXPRESS
PTE. LTD.; WAN HAI LINES LTD.; YANG MING
MARINE TRANSPORT CORP.; AND
ZIM INTEGRATED SHIPPING SERVICES,

Respondents.

Respondents Ocean Carrier Equipment Management Association, Inc., Consolidated Chassis Management, LLC, CMA CGM S.A., COSCO Shipping Lines Co. Ltd., Evergreen Line Joint Service Agreement, FMC No. 011982, Hapag-Lloyd AG, HMM Co. Ltd., Maersk A/S, MSC Mediterranean Shipping Company S.A., Ocean Network Express Pte. Ltd., Wan Hai Lines Ltd., Yang Ming Marine Transport Corp., and ZIM Integrated Shipping Services (collectively, “Respondents”) move, pursuant to 46 C.F.R. § 502.72, to strike the Complainant’s Reply to Respondents’ Response to IMCC’s Statement of Undisputed Material Facts (“IMCC Reply”, Docket 20-14, Doc. No. 122).

Respondents have not sought consent of Complainant to file this Motion because the IMCC Reply has already been improperly filed.

PROCEDURAL BACKGROUND

The Initial Order entered by Judge Wirth on July 30, 2020, included detailed pretrial procedures, including a section addressing the appropriate procedure for filing and responding to Motions. (Initial Order, ¶¶13-17) Paragraph 15 addressed the procedures that are applicable to motions for summary decision, including the requirements for a movant's statement of material facts, while paragraph 16 specified the type of evidentiary support that the non-movant must submit in support of any responses which dispute the movant's specific statements of fact.

However, there is no provision in this detailed Initial Order which permits the filing of a "reply" by a movant to a non-movant's response to a movant's statement of material facts.¹ Complainant has nevertheless filed the Reply, which is in contravention of the Initial Order. Respondents accordingly move to strike the Reply ("Motion").

ARGUMENT

The Complainant's Statement of Uncontested Material Facts ("SUMF", Docket 20-14, Doc. No. 92), contained 738 "statements" and numbered 181 pages in length. In their Response to Complainant's Statement of Uncontested Material Facts ("Response", Docket 20-14, Doc. No. 105), Respondents were required to include objections to a number of irregularities in the SUMF which violated the criteria for a statement of material facts:

- In violation of the directive in the Initial Order that each numbered paragraph contain "a concise statement of each material fact", there were hundreds of statements which contained multiple conclusory and argumentative assertions, combined with partial

¹ Cognizant of the procedures set forth in the Initial Order, the Respondents did not file a reply to the Complainant's Response to Respondents' Statement of Material Facts.

quotations from deposition testimony and excerpts from exhibits that hindered Respondents' ability to prepare concise responses to the many statements which Respondents disputed;

- Numerous statements contained or referred to facts that were not material, requiring Respondents to cite to evidence which demonstrated why the assertions made by Complainant were not material;
- Headings were embedded in the SUMF which, contrary to Complainant's assertion that same were included as "helpful guideposts", were on their face argumentative and conclusory; e.g. "IMCC Has Standing", "...CCM Rules 5.5. and 5.7 Restrict Chassis Choice...", "...Respondent Ocean Carriers Establish and Implement Chassis Policies Restricting...Choice...", "Ocean Carriers' Contracts with IEPs Link CH/MHE Rates to MH Volumes", etc.

Respondents responded, in good faith, to Complainant's SUMF. And, because of the need to respond to the improper content thereof, Respondents' Response numbered 335 pages (Docket 20-14, Doc. No. 105). Complainant has now submitted a Reply which:

- Improperly includes argumentative headings;
- Unnecessarily summarizes responses to Complainant's factual assertions which Respondents have either stipulated to or admitted; and,
- Erroneously attempts to persuade the Presiding Officer to "weigh" evidence with respect to the numerous factual statements that the Respondents have disputed, which have been supported by references to numerous exhibits, testimony and evidence in the record.

As discussed above, the detailed Initial Order does not contemplate or provide for the Reply in support of a statement of material facts, which Complainant nevertheless has improperly filed.

Similarly, §502.70(a), which describes the procedure for dispositive motions, requires “a statement of material facts with exhibits as appropriate”; and, §502.70(b) requires that the response include “specific responses to any statements of material facts with exhibits as appropriate.” §502.70(c) provides for a reply brief, which “may not raise new grounds for relief or present matters that do not relate to the response and must not reargue points made in the opening motion,” but makes no reference to the statements of material facts.

The principle that a “reply” is not permitted when a non-movant properly contests a factual assertion by the movant was discussed in *Circle Grp., L.L.C. v. Se. Carpenters Reg’l Council*, 836 F. Supp. 2d 1327, 1349-50 (N.D. Ga. 2011). In that case, the court granted a motion to strike the moving party’s reply to the non-movant’s response to the statement of undisputed material facts. The court stated that parties were precluded from “filing supplemental... materials to a motion for summary judgment ‘with the exception of a reply brief by the movant, except upon order of the court.’” *Id.* at 1349.

This is consistent with the approach taken under FMC regulations, which generally do not permit a reply to a response absent a request from the Presiding Officer or a showing of extraordinary circumstances. See, e.g., 46 C.F.R. §§ 502.70(d) and 502.71(c). Here, there has been no showing of extraordinary circumstances and no such request by the Presiding Officer.

In fact, the Presiding Officer’s Initial Order is quite specific about the movant’s obligation to file a statement of material facts and the non-movant’s obligation to respond by citing to evidence which substantively supports the non-movant’s disputation of factual assertions made by the movant. The Initial Order does not contemplate any further filings insofar as statements of material facts are concerned. Moreover, once a challenge to a factual statement has been supported with citations to evidence in the record, that fact has been properly disputed and, if the fact is

material, then summary judgment must be denied because summary judgment can only be granted “if the movant shows that there is no genuine dispute as to any material fact....” [F.R.C.P. 56(a)].

By filing the Reply, Complainant is attempting to persuade the Presiding Officer to weigh the evidence; however, such an exercise is not permitted when summary judgment is sought because the latter can only be granted when the judicial officer is presented with undisputed material facts.

For this reason, the Complainant’s Reply should be stricken. If the Respondents are mistaken, and the Presiding Officer contemplated that a reply should be permitted, then Respondents request leave to file a reply to Complainant’s Response to Respondents’ Statement of Material Facts (Docket 20-14, doc. No. 109), and request seven days from the issuance of the Presiding Officer’s order ruling on the Respondents’ Motion to do so.

CONCLUSION

For the foregoing reasons, Respondents’ Motion should be granted and the Reply should accordingly be stricken. Alternatively, Respondents should be granted leave to file a reply to Complainant’s Response to Respondents’ Statement of Material Facts.

Respectfully submitted,

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